SHITONG QIAO

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ACADEMIC APPOINTMENTS

Duke University School of Law, Durham, North Carolina

Ken Young-Gak Yun and Jinah Park Yun Distinguished Professor of Law, July 1, 2025-

Professor of Law (with tenure) and Ken Young-Gak Yun and Jinah Park Yun Research Scholar, August 15, 2021- June 30, 2025

Co-Founder, ChinaLab@DukeLaw
Lateral Appointments Committee
Core Faculty Member, *Duke University Asian/Pacific Studies Institute*
Duke Kunshan University Executive Vice Chancellor Search Committee

The University of Hong Kong Faculty of Law, Hong Kong

Honorary Professor, September 2024- August 2026

Professor, April 1, 2021- August 14, 2021 (on unpaid leave, Fall 2021- Summer 2024)

Associate Professor (tenured), August 14, 2020- March 31, 2021

Assistant Professor, August 13, 2014- August 13, 2020

New York University School of Law, New York, NY

Research Scholar, September 2013- July 2014

VISITING AND ADJUNCT POSITIONS

Princeton University, *Law and Public Affairs (LAPA) Fellow*, 2020-2021

New York University School of Law, New York, NY

Jerome A. Cohen Visiting Professor of Law, Spring 2020

Global Associate Professor of Law, Fall 2017

Global Assistant Professor of Law, January 2016; *Global Associate Professor of Law*, January 2018 (NYU Shanghai)

Duke University School of Law, Durham, NC

Ken Young-Gak Yun & Jinah Park Yun Visiting Assistant Professor of Law, Spring 2019

Peking University, School of Transnational Law, Shenzhen, China

Visiting Professor, June 2022, June 2023

Visiting Faculty Member & Director of Advanced Legal Studies, August 2011- June 2012

Australian National University

Member, Capitalism Studies Network, August 2024-

National Committee on U.S.- China Relations

Fellow, Public Intellectuals Program, 2025-2027

EDUCATION

Yale Law School, New Haven, CT
J.S.D., 2015
Judge Ralph K. Winter Prize (awarded annually to the best student paper written in law and economics): "Chinese Small Property: The Co-Evolution of Law and Social Norms"
Oscar M. Ruebhausen Fund Fellowship
LL.M., 2010

Peking University, Beijing, China
MPhil in Law, 2009
Morrison & Foerster Scholarship
Top Academic Prize (sole winner among 111 MPhil students)
Silver Award of the Sixth Challenge Cup National Business Plan Competition of China

Wuhan University, Wuhan, China
LL.B., 2007
First Class Scholarship
Wuhan University International Law Review (The first undergraduate editor in the journal's history)

HONORARY MEMBERSHIP

Associate Member, The International Academy of Comparative Law

SELECTED PUBLICATIONS

THE AUTHORITARIAN COMMONS: NEIGHBORHOOD DEMOCRATIZATION IN URBAN CHINA (Cambridge University Press, January 2025)

- Selected for the Inaugural *Asian Law Junior Faculty Workshop*, National University of Singapore, June 13, 2019 (8 out of 311 submissions)
- Selected for *Challenges to the Rule of Law: Lessons from and for Asia*, AALS Annual Meeting, Washington, D.C., Jan. 2-5, 2020.
- Law and Public Affairs Fellowship Program, Princeton.
- Book Talks: Duke, Yale, Stanford, Columbia, Chicago, NYU, Penn, McGill, American Bar Foundation, LSA Annual Meeting (book panel), Harvard-MIT Urban China Series (Zoom), Urban China Research Network Series (jointly hosted by Fudan and Jiaotong University, Zoom).
- Book Reviews: China Quarterly (Ben Read), Asian Journal of Law & Society (Yiang Zhu), Europe-Asia Studies (Rongxin Li), Law & Social Inquiry (Florian Grisel), Australian Journal of Asian Law (Ruoying Chen)
- Interviews: The Law and Political Economy Project (with Jed Purdy), European Chinese Law Research Hub (with Marianne von Blomberg), U.S.- China Perception Monitor (with Alice Liu), China Governance Lab at The University of Toronto (with Mary Hertz)

CHINESE SMALL PROPERTY: THE CO-EVOLUTION OF LAW AND SOCIAL NORMS, Cambridge University Press, 2017. (paperback, 2019)

- The inaugural Masahiko Aoki Award for Economic Paper (2017) [Media coverage: English; Japanese; Chinese]
- The University of Hong Kong Research Output Prize (awarded annually to the best research output of each faculty), 2018.

- Book Review: Weitseng Chen, *Small Property in China and Big Implications on Property Theories*, THE INTERNATIONAL JOURNAL OF CONSTITUTIONAL LAW (I-CON), Vol. 16, Issue 1, 723-727 (2018)
- Book Review: Sida Liu, *Property Law and Property Rights in China*, ASIAN JOURNAL OF LAW AND SOCIETY, doi:10.1017/als.2018.19.

Social Norms 2.0: From Private Governance to Co-Evolution, LAW AND SOCIAL INQUIRY, *forthcoming. (invited book review)*

Governing with Digital Platforms: A Chinese Lesson for the U.S.?, DUKE JOURNAL OF COMPARATIVE & INTERNATIONAL LAW, *forthcoming.*

From Taxi to Didi: Voice and Balancing in the Industrial Transition, LAW AND SOCIAL INQUIRY, 2025, DOI: https://doi.org/10.1017/lsi.2025.10092. (with Bingwan Xiong)

Local Resistance to Central Ideology: How Have Chinese Homeowners Contested the Party's Leadership?, YALE JOURNAL OF LAW & THE HUMANITIES, Vol. 36, 695-713 (2026).

Communities Built on Political Trust: Theory and Evidence from China, URBAN STUDIES, VOL. 62, 292-309 (2025) (with Yu Zeng)

Workload, Legal Doctrine, and Judicial Review in An Authoritarian Regime: A Study of Expropriation Judgments in China, 80 INTERNATIONAL REVIEW OF LAW AND ECONOMICS 106232 (2024). (with Chaoqun Zhan)

- Featured in National Affairs website.

Cooperating to Resist: Society and State during China's COVID Lockdowns, 35 YALE J.L. & HUMAN. 877 (2024)

- Featured in HealthLawProf Blog.

Finance against Law: The Case of China, HARVARD INTERNATIONAL LAW JOURNAL, Vol. 64, 431-487 (2023).

- Invited blog posts: Columbia Law School Blue Sky Blog; The FinReg Blog (Duke Financial Economics Center)
- Talk at NYU US-Asia Law Institute
- Cited in the 2023 Report to Congress of The U.S.-China Economic and Security Review Commission

The Authoritarian Commons: Divergent Paths of Neighborhood Democratization in Three Chinese Megacities, 71 AMERICAN JOURNAL OF COMPARATIVE LAW 388 (2023).

- Hessel Yntema Prize, American Society of Comparative Law, 2024.

Land Options for Housing: How New Property Rights Can Break Old Land Monopolies, 44 U. Pa. J. Int'l L. 163 (2022). (with Roderick Hills)

- Invited op-eds: South China Morning Post
- Featured in China Daily; Phoenix Weekly (凤凰周刊)
- Talk at HKU Faculty of Law

The Structure and Spirit of Chinese Property Law, in THE ROUTLEDGE HANDBOOK OF PROPERTY, LAW AND SOCIETY (edited by Nicole Graham, Margaret Davies and Lee Godden, 2022), 52-60.

Legal Doctrine and Judicial Review of Eminent Domain in China, LAW & SOCIAL INQUIRY, VOL. 46, ISSUE 3, 826-859 (2021). (with Wenzheng Mao)

Expropriation in the Name of Rights: Transferable Development Rights (TDRs), the Bundle of Sticks and Chinese Politics, NEW YORK UNIVERSITY JOURNAL OF LAW & LIBERTY, VOL. 13, 1-43 (2020).

Fragmented Laws, Contingent Choices: The Tragicomedy of the Village Commons in China, DUKE JOURNAL OF COMPARATIVE & INTERNATIONAL LAW, VOL. 29, 235-275 (2019).

- Selected as one of the eleven papers presented at the *2015 International Junior Faculty Forum* (Stanford Law School)
- Honorable Mention of the 2019 Asian Law and Society Association Distinguished Article Award

Rights-Weakening Federalism, MINNESOTA LAW REVIEW, VOL. 102, NO. 4, 1671-1702 (2018).

Exclusionary Megacities, SOUTHERN CALIFORNIA LAW REVIEW, VOL. 91, NO. 3, 467-522 (2018). (with Wendell Pritchett)

- Reported by *Caixin* (a leading Chinese news media);

Binding Leviathan: Credible Commitment in an Authoritarian Regime, MINNESOTA LAW REVIEW, VOL. 102, NO. 4, 1591-1617 (2018). (with Roderick Hills)

Dealing with Illegal Housing: What New York City Can Learn from Shenzhen, China? FORDHAM URBAN LAW JOURNAL, VOL. 43.3, 743-769 (2017).

- Chinese translation: Huina Xiao trans. WEIFA FANGWU YU FANXIANG QUHUA: JIYU NIUYUE HE SHENZHEN DE BIJIAO YANJIU, CHENGSHI ZHILI YANJIU [URBAN GOVERNANCE STUDIES], Vol. 1, 15-39, 2017.

Voice and Exit as Accountability Mechanisms: Can Foot-Voting Be Made Safe for the Chinese Communist Party?, COLUMBIA HUMAN RIGHTS LAW REVIEW, Vol. 48, No. 3, 158-210 (2017). (with Roderick Hills)

- Featured in Legal Theory Blog

Small Property, Big Market: A Focal Point Explanation, AMERICAN JOURNAL OF COMPARATIVE LAW, VOL. 63, NO. 1, 197-238 (2015).

- HKU Faculty of Law Research Award
- Chinese translation: Yulan Liu trans. XIAOCHANQUAN DA SHICHANG: JIAODIAN YU BOYI, BI JIAO [COMPARATIVE STUDIES], VOL. 5, 2019.

The Evolution of Relational Property Rights: A Case of Chinese Rural Land Reform, IOWA LAW REVIEW, VOL. 100, NO. 6, 2480-2506 (2015). (with Frank Upham).

- Featured at *Oxford Business Law Blog*
- Chinese translation published at SHI DA FA XUE [ECNU LAW REVIEW], VOL. 3, 2018.

The Politics of Chinese Land: Partial Reform, Vested Interests, and Small Property, COLUMBIA JOURNAL OF ASIAN LAW, VOL. 29, NO. 1, 70-113 (2015).

Planting Houses in Shenzhen: A Real Estate Market without Legal Titles, CANADIAN JOURNAL OF LAW AND SOCIETY, VOL. 29, 253-272 (2014).

Governing the Post-Socialist Transitional Commons: A Case from Rural China, COLORADO JOURNAL OF INTERNATIONAL ENVIRONMENTAL LAW AND POLICY, VOL. 24, NO. 1, 117-162 (2013), reprinted in BRIGHAM-KANNER PROPERTY RIGHTS CONFERENCE JOURNAL, VOL. 1, 303- 344 (2012).

The Evolution of Property Law in China: Stick by Stick?, in PRIVATE LAW IN CHINA AND TAIWAN: ECONOMIC AND LEGAL ANALYSIS (Yun-chien Chang et al ed., Cambridge University Press 2017), 182-211.

- Reviewed in Gregory M. Stein, *The Sticks in the Chinese Property Rights Bundle*, JOTWELL (The Journal of Things We Like (Lots)) (June 15, 2017)

The Changing Landscape of Chinese Property Law, in RESEARCH HANDBOOK OF COMPARATIVE PROPERTY LAW (Graziadei and Smith eds., Edward Elgar 2017), 311-332. (with Frank Upham).

Small Property, Adverse Possession and Optional Law, in LAW AND ECONOMICS OF POSSESSION (Yun-chien Chang ed., Cambridge University Press 2015), 290-319.

Whither China's Non-Interference Principle?, EUROPEAN SOCIETY OF INTERNATIONAL LAW, CONFERENCE PAPER NO.1/2011.

权利分置的逻辑[*The Logic of Rights Separation*], 法律与社会科学[Law and Social Sciences], 2023.

行政征收的司法控制之道：基于各高级法院裁判文书的分析[*Strategic Adjudication: Eminent Domain in High People's Courts*]，清华法学[TSINGHUA UNIVERSITY LAW JOURNAL], Vol. 4, 2018（与毛文峥合著）

- Cited in Jiang Bixin (江必新, Vice President of the Supreme People's Court and Grand Justice of the Second Rank), Several Relationships in the Revision of the Land Administration Law (修改《土地管理法》應當處理好的幾對關系), JOURNAL OF LAW APPLICATION (法律適用), No.7, p. 4 (2019).

SELECTED RESEARCH GRANTS

Interdisciplinary Open-Access Portal on Chinese Law and Policy, Duke Bass Connections, USD 15,000, 2025. (with Alex Zhang and Luo Zhou)

Understanding China's Climate Change Mitigation Efforts: A Case Study of Its Carbon Emissions Trading System, Duke Climate Research Innovation Seed Program Ideation Award, USD 20,000, 2024-2025.

Rise Above the Research Silos: All Roads Lead to China, USD 17,477, Faculty Advancement Seed Grant, Duke University, USD 15,000, 2023-2024. (with Alex Zhang)

The Authoritarian Commons: The Co-Evolution of Law and Social Norms in China's Urban Residential Neighborhoods, Research Grant Council of Hong Kong, HKD 1,255,474 (USD 161,430), 2021-2024.

Eminent Domain in Chinese Courts: An Empirical Study, Research Grant Council of Hong Kong, HKD 450,653 (USD 57,400), 2019-2022.

National Laws and Local Land Reforms: The Spectrum of Legality, Research Grant Council of Hong Kong, HKD 555,400 (USD 71,500), 2017-2020.

Transferable Development Rights: Cure or Curse for Chinese Farmers? Lincoln Institute of Land Policy, USD 30,000, 2017-2018.

COMMENTARIES

Cleanup of China Evergrande collapse calls for coordination and clarity, Nikkei Asia, March 6, 2024, https://asia.nikkei.com/Opinion/Cleanup-of-China-Evergrande-collapse-calls-for-coordination-and-clarity.

How Technology Is Changing Justice in China, Judicature International (June 1, 2022) (with Zhiyu Li and Benjamin Chen)

A Rural-Urban Crossroads in Chinese Law: Qiao Shitong on the Development and Future of Chinese Eminent Domain, Columbia Journal of Transnational Law (The Bulletin), March 3, 2022, https://www.jtl.columbia.edu/bulletin-blog/a-rural-urban-crossroads-in-chinese-law-qiao-shitong-on-the-development-and-future-of-chinese-eminent-domain

Breaking old land monopoly in Hong Kong to resolve the city's housing crisis, South China Morning Post, March 1, 2022, https://www.scmp.com/business/article/3168623/breaking-old-land-monopoly-hong-kong-resolve-citys-housing-crisis. (with Roderick Hills)

A New Age for the WHO?, USALI Perspectives, January 4, 2021, Volume 1, Number 8, https://usali.org/usali-perspectives-blog/a-new-age-for-the-who

Killing Two Birds with One Stone: How to end rural land expropriation and secure tenure for urban property owners at the same time, USALI Perspectives, January 21, 2021 Volume 1, Number 12, https://usali.org/usali-perspectives-blog/tag/Roderick+Hills+Jr. (with Roderick Hills)

Here's how transferable development rights outweigh Lantau reclamation plan in ending Hong Kong housing crisis, South China Morning Post, March 31, 2021. (with Roderick Hills), https://www.scmp.com/business/article/3127619/heres-how-transferable-development-rights-outweigh-lantau-reclamation-plan

Development Rights for All, USALI Perspectives, June 17, 2021, Vol. 1, No. 26, https://usali.org/usali-perspectives-blog/development-rights-for-all (with Roderick Hills)

SELECTED CONFERENCES AND INVITED PRESENTATIONS (including scheduled ones)

United States: Faculty Workshops (Duke; Northwestern; NYU); Yale Property Theory Workshop; Yale Paul Tsai China Center; Marcia Wythes Center on Contemporary China at Princeton University; Stanford International Junior Faculty Forum; NYU (Asia Law Weekly Lunch Dialogue; Furman Center & Marron Institute Urban Research Seminar; Law and Development Colloquium; Reiss Center on Law and Security); Columbia Law School (Center for Chinese Legal Studies; Center on Global Legal Transformation); Cornell Law School; China Law Conference (The University of Michigan); Harvard Law School Institute for Global Law and Policy; American Association of Law Schools Annual Meetings; American Law and Economics Association Annual Meetings; Annual Conference of Empirical Legal Studies; The Annual Comparative Law Work-in-Progress Workshop of the American Society of Comparative Law; The Annual State & Local Government Law Works-in-Progress Conferences; The University of Pennsylvania Center for the Study of Contemporary China; Law and Society Association Annual Meetings; Society for Institutional and Organizational Economics (SIOE) Annual Meetings; MIT Urban China Seminar; The Fourth Conference on Law and Macroeconomics; World Bank; The 2025 Duke-UNC China Leadership Summit; University of Virginia Law School (via Zoom)

Europe: Theory and Pedagogy of Urban Law (Luiss Guido Carli, Rome); European Association of Law and Economics Annual Meeting; TILEC Economic Governance Workshop (Tilburg, Netherlands); Institute for Advanced Study (ZiF, Bielefeld, Germany); Max Planck Institute for Research on Collective Goods; Durham University Centre for Chinese Law and Policy

Asia: Academia Sinica; Annual Conference of Asian Law and Economics Association; Constitutional Court of South Korea; Peking University Law School; Chicago-Tsinghua Junior Faculty Forum; Tsinghua University School of Public Policy; Renmin University Law School; Shanghai Jiaotong University Law School; Fudan University (王宠惠系列讲座); Chinese University of Hong Kong Department of Economics; Hong Kong Baptist University Department of

Economics; The University of Hong Kong; The Inaugural Asian Law Junior Faculty Workshop (National University of Singapore); Institute of Comparative Law, University of Tehran (via Zoom).

Australia: Melbourne Law School; Sydney Law School; Australian National University Law School (via Zoom)

PROFESSIONAL QUALIFICATION AND SERVICES

National Judicial Examination of PRC (2007); New York State Bar Exam (2014)
Expert Witness: Ontario Securities Commission; Supreme Court of the State of New York
Member, Board of Directors, American Society of Comparative Law (Duke's representative)

TENURE AND EXTERNAL REVIEW SERVICES

National University of Singapore; The University of Hong Kong; Peking University; Saint Louis University School of Law; Tsinghua University; Zhejiang University; Academia Sinica; Social Sciences and Humanities Research Council of Canada

MEDIA INTERVIEWS AND OPINIONS

Agence France-Presse; BBC; China Daily; Deutsche Welle; Frankfurter Allgemeine Zeitung (FAZ); The Guardian; South China Morning Post; The Global and Mail; Oxford Business Law Blog; Bloomberg; NPR; New York Times; The Washington Post; People's Court Daily (人民法院报); Caixin (财新); China Reform (中国改革); Phoenix Weekly (凤凰周刊)

JOURNAL EDITORSHIP AND REFEREE

Editorship:

- Faculty Editorial Board: *Law & Contemporary Problems* (Fall 2022- Spring 2023)
- Founding Member, International Editorial Board of *Judicature*
- Editorial Board: *American Journal of Comparative Law (Duke's representative)*
- Founding Co-Editor: *LSN: Chinese Law* (2019-2022)
- Founding Member, Editorial Advisory Board of *USALI Perspectives* (NYU Law)
- Book Review Editor: *Asian Journal of Law and Society (Cambridge University Press)*
- Editorial Committee*: Hong Kong Law Journal (Sweet & Maxwell)*

Referee: *Academia Sinica Law Journal*; *American Journal of Comparative Law*; *American Journal of Legal History*; *China: An International Journal; China Journal; China Perspectives*; *Chinese Journal of Comparative Law*; *Chinese Journal of International Politics*; *Chinese Journal of Sociology*; *Comparative Political Studies; Frontiers of Law in China*; *Frontiers in Environmental Science; Habitat International*; *International Review of Law and Economics*; *Journal of Law, Economics, and Organizations*; *Journal of Environmental Law*; *Land Use Policy*; *Law & Social Inquiry*; *Modern China*; *Policy Sciences*; *Regulation & Governance; The China Journal*; *Urban Affairs Review*; *Urban Studies; Routledge; Cambridge University Press; Oxford University Press; University of Hawai`i Press*